

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 4, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10 a.m.		
1	Patriot Bank v. Alvarado	The Motion to be Relieved as Counsel brought on behalf of Alexander Penley is DENIED , without prejudice. Initially, the moving papers request relief for Counsel "Alexander Penley," but are thereafter signed exclusively by "Andrew Gramajo." (See ROA Nos. 36 and 40.) As Andrew Gramajo of Cordoba Legal Group is the sole

		attorney of record for Defendant, the motion appears to seek relief for an attorney who has not appeared in this action. Additionally, regardless, the motion fails to comply with the requirements of California Rules of Court rule 3.1362. The notice of motion fails to list the Court address, within ¶2(b) of the mandatory notice form. Additionally, the address listed within the caption is the address for the <i>Civil Complex Center</i>, despite Department C10 being located in the <i>Central Justice Center</i>, located at 700 Civic Center Drive West, Santa Ana, CA 92701. Based on the above, the client did not receive adequate notice of the hearing. Further, the motion was inadequately served. While a proof of service indicates the motion to be relieved was served on the client, via mail, on May 5, 2026 (ROA No. 38), the proof of service does not indicate service of the accompanying declaration and proposed order, as required. (Cal. Rules of Court rule 3.1362(d).) Finally, the mandatory declaration left the entirety of ¶3 blank. (ROA No. 36.) Consequently, there is no indication the client's address was confirmed. (See ¶3(b)(1) of ROA No. 36.) Similarly, Counsel offered no information which supports proceeding, despite a lack of confirmation. (See ¶3(b)(2) and (c) of ROA No. 36.) The above fails to comply with California Rules of Court rule 3.1362(d)(1). The moving party to give notice.
2	Thompson v. Doan	Counsel John P. Swenson, Janae L. Hill, and Arden Burstein move to be relieved as counsel of record for Plaintiff John Antyony Thompson ("Client"). For the following reasons, the motion is CONTINUED to July 09, 2026, at 10:00 a.m. in this Department. On 05/07/2026, this court continued the hearing for Moving Counsel to file and serve proof of service "establishing service of all moving papers on Client" and an updated proposed order. The court also ordered Moving Counsel to provide notice of ruling and continued hearing date on the client. The court record shows no compliance with this court's 05/07/2026 order. There remains no proof of service of the moving papers on Client John Anthony Thompson, no updated proposed order, and no proof of proper service (i.e., by non-electronic means) of this continued hearing date. (See Code Civ. Proc., § 1010.6, subd. (c)(3); Cal. Rules Ct., Rule 2.251(b)(1)(B).) No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve: (1) proof of service that complies with Code of Civil Procedure section 1013a, establishing service by non-electronic means of all moving papers on Client; and (2) an updated proposed order on Judicial Council form MC-053 that updates the upcoming hearing information provided in Section 7.

		Client Thompson may file a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client.
3	Haloy Technology Corporation v. Tazga LLC	Off calendar.
1:30 p.m.		
1	Long v. Glyder LLC	No Tentative Ruling.
2	Teger v. Stevens	Defendants Jack Stevens and Carol Stevens' motion for summary judgment is GRANTED. Defendants' request for judicial notice is GRANTED. (Evid. Code § 452, subd. (h)). This motion is unopposed. <u>Motions for Summary Judgment and/or Adjudication standard</u> "Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 850-51.) However, "[t]he defendant must indeed present evidence." (<i>Aguilar</i>, <i>supra</i>, 25 Cal.4th at 855, <i>italics original</i>.) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.)

The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) "In some instances . . . , 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1083-1084, quoting *Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.* (1988) 199 Cal.App.3d 791, 795.) "'If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.'" (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

In ruling on a motion for summary judgment, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (*Aguilar, supra*, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, quoting *Seo v. All-Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1201-1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp.* (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (*Johnson v. United Cerebral Palsy, etc.* (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (*Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392.)

Here, Defendants move for summary judgment, or, alternatively, summary adjudication as to each cause of action for quiet title and declaratory relief.

Common Law Quiet Title

"A summary judgment motion is directed to the issues framed by the pleadings". (*Canales v. Wells Fargo Bank, N.A.* (2018) 23 Cal.App.5th 1262, 1268).

Here, Plaintiffs have alleged the following in their verified First Amended Complaint (FAC):

"On February 15, 1977, the then existing owners of record of 9581 Featherhill and 9601 Featherhill executed and recorded two reciprocal easements, copies of which are attached as Exhibit 1, consisting of a rectangular pad of property 60 feet by 65 feet in the back yard of their respective homes ('Mutual Easements') for the purpose of installing, maintaining, and using a tennis court shared by both properties." (FAC, ¶ 6).

The First Amended Complaint then goes on to allege that "Concurrent with the execution and recording of the Mutual Easements, the prior owners .. executed and recorded a document titled "Declaration of Tennis Court Maintenance" ('Declaration'), a copy of which is attached as Exhibit 2. Among other things, the Declaration requires both owners to share equally in the cost to maintain and repair the tennis court and that the tennis court shall be maintained in good playable condition." (FAC, ¶ 7). Plaintiffs allege that the tennis court has not been used for playing tennis for 34 years, and that it is run down and in a state of severe disrepair. (FAC, ¶ 10). The cost of resurfacing has been estimated at a minimum of \$132,720.00, and neither plaintiffs nor defendants are willing to pay their respective 50 percent share to bring the tennis court up to a good playable condition. (FAC, ¶ 10).

"Abandonment of an easement created by grant, as here, requires proof of (1) the cessation of use of the easement by the owner of the dominant tenement and (2) [] unequivocal and decisive acts on the part of the [dominant tenant], clearly showing an intention to abandon." (*Visitacion Investment, LLC v. 424 Jessie Historic Properties, LLC* (2023) 92 Cal.App.5th 1081, 1090 [internal quotations omitted; citing to *Gerhard v. Stephens* (1968) 68 Cal.2d 864, 890]).

"Ordinarily, failure to repair does not constitute an abandonment, but an abandonment may be predicated upon facts showing that the means of enjoyment of an easement have been in a state of disrepair for a long period of time. ... One who is bound to keep his easement in repair but fails to do so for an unreasonable length of time may be deemed to have abandoned the easement. Any act on the part of the dominant owner that is inconsistent with his further enjoyment of the right is an abandonment of it." (*Flanagan v. San Marcos Silk Co.* (1951) 106 Cal.App.2d 458, 464).

The second element requires an "unequivocal and decisive acts on the part of the [dominant tenant], clearly showing an intention to abandon." (*Visitacion Investment, LLC, supra*, 92 Cal.App.5th at 1090 [citations omitted]). "With respect to this inquiry, California has adopted the view of the original Restatement of Property that '[t]he intention required in the abandonment of an easement is the intention not to make in the future the uses authorized by it. The benefit of an easement lies in the privilege of use of the land subject to it. There is no abandonment unless there is a giving up of that use.'" (*Id.* [citations omitted]).

Abandonment cannot result "from mere nonuser; the holder must also manifest an intent to forswear all future conforming uses of the easement." (*Faus v. City of Los Angeles* (1967) 67 Cal.2d 350, 363).

Defendants set forth the following in their Separate Statement of Undisputed Material Facts (UMF):

Plaintiffs Thomas Teger and Carol Teger own the real property located at 9581 Featherhill Drive, Villa Park, California 92861. (UMF 1). Defendants Jack Stevens and Carol Stevens own the neighboring real property located at 9601 Featherhill Drive, Villa Park, California 92861, along with

their son William "Liam" Stevens as co-trustees of the J & C Trust Established November 30, 1984 (the "Trust"). (UMF 2).

On February 15, 1977, the then-existing owners of record of 9581 Featherhill and 9601 Featherhill executed and recorded mutual easements (the "Mutual Easements"), which are two reciprocal easements, consisting of a rectangular pad of property 60 feet by 65 feet in the back yard of their homes, for the purpose of installing, maintaining, and using a tennis court shared by both properties. (UMF 3). Concurrent with the execution and recording of the Mutual Easements, the prior owners of 9581 Featherhill and 9601 Featherhill executed and recorded a document titled "Declaration of Tennis Court Maintenance" ("Declaration"). (UMF 4). The Declaration requires both owners to share equally in the cost to maintain and repair the tennis court and that the tennis court shall be maintained in a good playable condition, among other requirements. (UMF 5). The Declaration further provides that it is a covenant running with the land and shall inure to the benefit of all future owners of the two properties in question until such time as the Tennis Court shall be abandoned or rededicated to each respective property owner. (UMF 6).

The Declaration of Tennis Court Maintenance ("Declaration") governing the mutual easement states: "Repairs on the said tennis court shall be required when the owners of either of the two properties ... decide that repairs are needed." (UMF 19, 20). The Declaration further states that upon this discretionary determination, "such owners," previously noted as the owners to make that determination, "shall obtain three bids from reputable licensed contractors" and shall accept the lowest of those bids, and "then shall initiate the repairs." (UMF 21).

One of the reasons Defendants purchased the Property was the existence of the Tennis Court. (UMF 7). Prior to living at 9601 Featherhill, Defendants had a home where they built their own tennis court. (UMF 8). Defendants have never expressed a desire or intent to abandon, destroy, or otherwise terminate the existence of the Tennis Court or underlying easement. (UMF 9). Defendants are, and always have been, firmly under the belief that the right of access and use of the easement and Tennis Court is not strictly reserved to the owners of the home, but to their guests and family. (UMF 10).

Defendants have never removed or attempted to remove someone from the Tennis Court for belief that the rights of access and use were strictly reserved for the owners of 9601 Featherhill and 9581 Featherhill only. (UMF 11). Although Plaintiff Thomas Teger declared under oath in the verified FAC that the Tennis Court has not been used for playing tennis in 34 years, he testified in his deposition that within the last four years he has allowed his licensees to use the Tennis Court to play tennis. (UMF 12). Defendants' guests have used the Tennis Court to play tennis and for other recreational purposes. (UMF 13). Defendants' son, Liam Stevens, with Defendants' permission, has used the Tennis Court to play tennis approximately 18 times and to learn how to rollerblade approximately 6 times. (UMF 14). Carol Teger conceded in her deposition testimony that the Tennis Court has received maintenance by Defendants prior to Plaintiffs' purchase of 9581 Featherhill. (UMF 15). Defendants paid for maintenance on and related to the Tennis Court in

1999 and 2020, including the filling of cracks on the Tennis Court, repairing a retaining wall related to the Tennis Court, and resurfacing the Tennis Court. (UMF 16).

Carol Teger admitted that the Tennis Court was in playable condition at least as late as 2021. (UMF 17).

Pursuant to the Declaration, Plaintiffs apparently invoked their right to determine that the Tennis Court requires repair, and they sought three bids. (UMF 22). Plaintiffs have so far declined to initiate replacement or repairs to the Tennis Court despite their right to do so under the declaration. (UMF 23). Defendants are firm in their beliefs that the Tennis Court is still in playable condition. (UMF 24). On or about February 24, 2026, Defendants offered to pay for half of the cost of the lowest bid for replacement of the Tennis Court. (UMF 18).

Defendants have established that the Mutual Easement provides that the owners of both properties grant an easement "of way to construct, use, maintain, operate, alter, add to, repair, replace, reconstruct, inspect and play on a tennis court with appurtenant fixtures" on both properties. (RJN, Ex. 1 [Grant deeds]).

Both Defendants have provided declarations stating that they have never expressed a desire or intent to abandon, destroy, or otherwise terminate the existence of the Tennis Court or underlying easement. (See UMF 9; Decl. of J. Stevens, ¶ 17; Decl. of C. Stevens, ¶ 8). Defendants' son, Liam Stevens, who is co-trustees of the J & C Trust Established November 30, 1984 (UMF 2), has used the Tennis Court to play tennis approximately 18 times. (UMF 14; Decl. of L. Stevens, ¶¶ 8-14).

Defendants also provided evidence of maintenance/repairs of the Tennis Court in 1999 and 2020, including the filling of cracks on the Tennis Court, repairing a retaining wall related to the Tennis Court, and resurfacing the Tennis Court. (UMF 16). Mr. Stephens declares: "On our about July 1, 1999, I paid Steven Bonny \$93.13 to fill large cracks in the Tennis Court. A true and correct copy of the invoice for this work is attached hereto as Exhibit 4." (Decl. of J. Stephens, ¶ 10, Ex. 4). "On or about June 22, 2020, I paid to have the Tennis Court's retaining wall repaired in the amount of \$250.00. A true and correct copy of the invoice for this work is attached hereto as Exhibit 5." (Decl. of J. Stephens, ¶ 11, Ex. 5). "On or about December 10, 2020, I received a quote for resurfacing the Tennis Court and repairing cracks in the Tennis Court from TrueLine Construction & Surfacing, Inc. The then owner of 9581 Featherhill Drive, Villa Park, California 92861, John Bogart and I shared in the cost of this resurfacing. A true and correct copy of the invoice for this work, as well as the proof of payment for such resurfacing, is attached hereto as Exhibit 6." (Decl. of J. Stephens, ¶ 12, Ex. 6).

Mr. Stephens also declares that on July 11, 2024, July 16, 2024, and July 23, 2024, he received three different quotes for resurfacing the Tennis Courts. (Decl. of J. Stephens, ¶¶ 13-15, Exs. 7-9).

Defendants' actions demonstrate that they did not intend to abandon. They conducted repairs to the property as recent as 2020 and sought bids for further repairs in 2024. Their son, and co-trustee of the J & C Trust Established November 30, 1984, continues to play tennis on the court with guests.

With regards to Plaintiffs' allegation that the cost of resurfacing has been estimated at a minimum of \$132,720.00, and neither plaintiffs nor defendants are willing to pay their respective 50 percent share to bring the tennis court up to a good playable condition (FAC, ¶ 10), Defendants established that on February 24, 2026, Defendants offered to pay for half of the cost of the lowest bid for replacement of the Tennis Court. (UMF 18; Decl. of J. Stephens, ¶ 16, Ex. 10). Defendants also contend their delay in making this offer should not be construed as a default or forfeiture, as there is no "time is of the essence" clause or deadline imposed in the Declaration of Tennis Court Maintenance. Furthermore, the Declaration provides for separate recourse in the event one of the property owners fails to pay their share, stating that: "If an owner shall not pay his pro-rata share of costs and expenses immediately upon receiving his bill for the same, the other owner shall be entitled without further notice, to institute legal action for the collection of funds advanced and shall be entitled to recover in such action, in addition to the funds advanced, interest thereon" (RJN, Ex. 2, ¶ 5 [Declaration of Tennis Court Maintenance]). See also Civ. Code § 845, subd. (c) also provides: "(c) If any owner refuses to perform, or fails after demand in writing to pay the owner's proportion of the cost, an action to recover that owner's share of the cost, or for specific performance or contribution, may be brought by the other owners, either jointly or severally."

Furthermore, notwithstanding their delay in offering to pay half of the resurfacing estimate, Defendants have established that they undertook their own efforts to repair the Tennis Court in 2020 and 2024.

Accordingly, the court finds that Defendants have met their initial burden by submitting undisputed evidence showing that the requisite element of unequivocal and decisive acts clearly showing an intention to abandon cannot be established.

The burden now shifts to Plaintiffs to create a triable issue of material fact. (See *Aguilar, supra*, 25 Cal.4th at p. 855).

Plaintiffs did not oppose. Therefore, Plaintiffs failed to meet their shifted burden.

Declaratory Relief

Code Civ. Proc. § 1060 provides: "Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the

		premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought.” This cause of action requires the following: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” (<i>Lee v. Silveira</i> (2016) 6 Cal.App.5th 527, 546 [citations omitted].). Plaintiffs’ declaratory relief cause of action is based on the same abandonment theory as their first cause of action. They allege the following in their FAC: Plaintiffs contend that the mutual easements have been abandoned. (FAC, ¶ 13). Plaintiffs seek a declaration that the mutual easements have been abandoned and no longer constitute an encumbrance on plaintiffs’ property located at 9581 Featherhill. (FAC, ¶ 13). Defendants dispute Plaintiffs’ contention that the Mutual Easements have been abandoned. (FAC, ¶ 14). An actual controversy exists over the issue of whether the Mutual Easements have been abandoned for the use of a tennis court. (FAC, ¶ 15). Once again, Defendants contend that the undisputed facts demonstrate that Plaintiffs cannot succeed in seeking a declaration that the Mutual Easements have been abandoned where the record is devoid of facts establishing a clear intent to abandon the Mutual Easements and unequivocal conduct demonstrating actual abandonment. Defendants rely on the same undisputed material facts (UMF nos. 1-24), which demonstrate that the requisite element of unequivocal and decisive acts clearly showing an intention to abandon cannot be established. Because Plaintiffs’ second cause of action is based on the same theory, which requires the same element of unequivocal and decisive acts clearly showing an intention to abandon, court finds that Defendants met their burden with regards to this cause of action as well. Plaintiffs failed to oppose, and, therefore, failed to meet their shifted burden. Accordingly, the motion for summary judgment is GRANTED. Defendants shall give notice.
3	Jones v. Roth	Plaintiff Kristina Jones moves to compel Defendants Randall Roth, James Sinclair, Ooblix Lending Group LLC, Ooblix Inc., and R.H. Roth & Associations, Inc. to provide verified responses without objections to Plaintiff’s form interrogatories (set one) and requests for production of documents (set one). On May 13, 2026, Plaintiff filed a notice of

		withdrawal of the motions set for hearing on June 4, 2026. (ROA 243.) Thus, the motions are taken OFF CALENDAR. However, the Court takes note that Plaintiff in pro per served the motion (and the notice of withdrawal) by email on Defendants' counsel's secretary – Monique Kingsbury at mkingsbury@callahan-law.com. That is her email address listed on the proofs of service filed by Defendants. However, that is not the email address of record for Defendants' counsel. Plaintiff should be serving documents on Javier H. Van Oordt at jvo@callahan-law.com. The moving party shall give notice of this ruling.
4	Donaho v. PHH Mortgage Services	Off calendar.
5	AIC Owner, LLC v. Dunchok	Defendant James M. Dunchok moves to set aside the default and default judgment entered against Defendant. For the following reasons, the unopposed motion is GRANTED. Code Civ. Proc. § 473(b) provides in pertinent part, “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . .” A motion seeking relief under Section 473(b) must be brought within 6 months of entry of the judgment. (Civ. Proc. Code § 473(b).) Defendant Dunchok's default was entered on November 4, 2025. (ROA 18.) Default judgment was entered against Dunchok on December 19, 2025. (ROA 22.) Dunchok filed this motion on January 8, 2026, well within 6 months of the default and default judgment. Dunchok seeks discretionary relief based on his claimed mistake, inadvertence, and excusable neglect. On June 11, 2025, Dunchok filed a lawsuit against Plaintiff AIC Owner, LLC and another party, Sarah Tolentino, concerning Dunchok's eviction from the property at issue in this lawsuit. (Orange County Superior Court Case No. 30-2025-01489145-CU-BC-WJC; Dunchok Dec., ¶ 2.) That action is still pending. Plaintiff commenced this action on August 21, 2025 and served Dunchok in late August 2025. (Dunchok Dec., ¶ 3.) Dunchok mistakenly believed that his first response in this matter was due with the January 2026 Case Management Conference. (Ibid.) Dunchok has made a sufficient

	showing of mistake, inadvertence, or excusable neglect to warrant setting aside the default.
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	Dunchok shall file the Proposed Answer to the Complaint with 7 days of this ruling, but Dunchok shall ensure that the formatting of the Answer complies with the Rules of Court. (See, e.g., California Rules of Court Rules 2.100 - 2.119.)
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	Case Management Conference is scheduled for July 23, 2026, at 9:00 a.m. in this department.
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	Dunchok shall give notice of this ruling.
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